

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 2, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV434168	Toll Bros, Inc. v. Lefco, Inc. a California Corporation	Order of examination: <u>parties ordered to appear.</u>
Line 2	24CV434168	Toll Bros, Inc. v. Lefco, Inc. a California Corporation	Order of examination: <u>parties ordered to appear.</u>
Line 3	2015-1-CV-288617	Vishal Gobhil et al. v. IDC Technologies, Inc. (IDC) et al.	Order of examination: <u>parties ordered to appear.</u>
Line 4	26CV489886	Good Samaritan Hospital, L.P. et al. v. County of Santa Clara	Application of Samuel Givertz to appear <i>pro hac vice</i> for defendant County of Santa Clara. No objection filed. Good cause appearing, the application is GRANTED. Moving party to submit proposed order.

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Calendar Line 1

Case Name: Hai Huynh v. Bien Doan

Case No.: 25CV458112

This is a defamation action brought by plaintiff Hai Huynh (Huynh) against defendant Dien Doan (Doan) based on Doan telling a third-party, Betty Duong (Duong), that Huynh was a “convicted felon.” Huynh’s original complaint, alleging a single cause of action for defamation per se, was filed in February 2025. Attached to the complaint as exhibit A was part of a transcript of a hearing in a prior civil harassment case, *City of San Jose v. Huynh*, case No. 24CH012393.

Doan previously filed both a special motion to strike the complaint (Code Civ. Proc., § 425.16) and a demurrer to the complaint. Both were heard by the court (Judge Chung) in September 2025. The court denied the anti-SLAPP motion. The court found that the complaint arose from protected activity under Code of Civil Procedure section 425.16, subdivision (e)(4). On the second prong of the analysis, the court rejected Doan’s arguments that the alleged statements were not sufficiently described and that the alleged statements would have been privileged under Civil Code section 47, subdivision (a). (See Sept. 19, 2025 order at pp. 9:11-10:18.) The court also found that “Huynh has submitted evidence in the form of declarations and testimony from the prior civil harassment proceeding that is sufficient to make a ‘prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ This includes the sworn testimony of Duong that at a funeral service in either February 2024 or ‘towards the end of 2023 or the fall season’ Doan ‘had told me that Hai Huynh was a bad guy and that he was a convicted felon and that I should be careful.’ (Complaint, Exhibit A, p. 129:10-15; see also Declaration of Betty Duong, ¶¶ 9-12.)” (*Id.* at pp. 8:24-9:5, internal citation omitted.)

The court expressly found that Huynh had shown sufficient prima facie evidence of malice: “Huynh has submitted evidence that even prior to making the allegedly defamatory statement to Duong, Doan had told others that Huynh was a ‘convicted felon,’ Doan had been told this was not true, he had been asked to stop making this statement, but he nevertheless insisted on repeating it to Duong. (Declaration of Thi Mong Hoang, ¶¶ 5-8; Declaration of Ha Phong Duong, ¶ 7; Declaration of Hai Huynh, ¶¶ 11-12, 16-18.) In addition, Huynh points to evidence in the public record that would have made clear—upon even a cursory examination—that Huynh was never convicted of a felony. (Huynh Declaration, ¶¶ 25-26.) This is sufficient to make a prima facie showing of malice.” (Sept. 19, 2025 order at pp. 10:20-11:6.)

The court sustained Doan’s demurrer to the defamation cause of action with leave to amend because “Huynh has pointed to sufficient evidence to make a prima facie showing of malice in response to the anti-SLAPP motion. But none of this evidence is in the pleading itself.” (*Id.* at p. 15:14-16.) The court granted leave to amend based on the decision in “*Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858 (*Nguyen-Lam*), which similarly involved a situation in which a plaintiff failed to plead malice adequately in her complaint but had sufficient evidence to prevail on the second prong of the anti-SLAPP analysis. In that case, the trial court granted leave to amend, and the Court of Appeal found no error in that ruling. Those are essentially the facts of the present case.” (*Id.* at p. 16:19-23.) The court takes judicial notice of Judge Chung’s order on its own motion. (Evid. Code, § 452, subd. (d).)